

25NNCV02334 25NNCV02334

County: los-angeles
Division: Civil Law and Motion
Department: 3
Hearing date: 2026-07-22
Motion: MOTION FOR LEAVE TO AMEND COMPLAINT
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Case Number: 25NNCV02334 Hearing Date: July 22, 2026 Dept: 3

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHEAST
DISTRICT

CALVIN SALMON,

Plaintiff(s),

vs.

CVS
PHARMACY, INC., et al.,

Defendant(s).

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CASE NO.: 25NNCV02334

[TENTATIVE]

ORDER RE: MOTION FOR LEAVE TO AMEND COMPLAINT

Dept.

3

8:30

a.m.

July 22,

2026

Plaintiff

Calvin Salmon seeks leave to file a Third Amended Complaint ("TAC") that corrects the name of the actual defendant, conforms the pleading to evidence obtained in discovery, and adds causes of action arising from the facts of the same incident pleaded in the initial complaint. The motion is unopposed.

The court may, in its discretion and after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading, including adding or striking out the name of any party, or correcting a mistake in the name of a party, or a mistake in any other respect. (Code Civ. Proc., § 473, subd. (a)(1).) A motion to amend a pleading must include a copy of the proposed amendment or amended pleading which must be serially numbered to differentiate it from previous pleadings or amendments and must state what allegations in the previous pleading are

proposed to be deleted or added, if any, and where, by page, paragraph, and line number, the allegations are located.

(Cal. Rules of Court, Rule 3.1324(a).) The motion shall also be accompanied by a declaration attesting to the effect of the amendment, why the amendment is necessary and proper, when the facts giving rise to the amended allegations were discovered, and why the request for amendment was not made earlier.

(Cal. Rules of Court, Rule 1.324(b).)

Plaintiff

argues that the TAC is necessary in order to amend the name of the defendant from CVS Pharmacy, Inc. to Garfield Beach CVS, LLC. The TAC also conforms the factual allegations to the evidence produced in discovery and obtained by subpoena (including surveillance footage produced by Defendants and records from the Los Angeles Police department) and adds punitive damages allegations. Plaintiff argues that the proposed amendments are timely because they are based on information obtained between January and April 2026, and this motion could not have been brought until the federal court remanded the action in June of 2026 and jurisdiction was returned to this Court.

The motion is

unopposed and it does not appear that allowing the filing of the TAC will cause any prejudice. Trial is scheduled for February 22, 2027, no new parties have been named, fact discovery remains open, and it is undisputed that the amendments are based on facts already within Defendant's possession.

Accordingly,

the motion is GRANTED and Plaintiff is ordered to file the proposed TAC within 5 court days.

Plaintiff to

give notice.

Dated

this 22nd

day of July

2026

William A. Crowfoot

Judge of the Superior Court

Parties who intend to submit on this

tentative must send an email to the Court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court may, at its discretion, adopt the tentative as the final order or place the motion off calendar.